

25NNCV02246 25NNCV02246

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-04

Motion: DEFENDANT MICHELLE GONZALES' MOTION FOR LEAVE TO FILE A CROSS-COMPLAINT

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Case Number: 25NNCV02246 Hearing Date: August 4, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST DISTRICT

TANIA GODOY, et al.,

Plaintiff(s),

vs.

SRINIVAS ODDE, et al.,

Defendant(s).

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CASE NO.: 625NNCV02246

[TENTATIVE] ORDER RE: DEFENDANT MICHELLE GONZALES' MOTION FOR LEAVE TO FILE A CROSS-COMPLAINT

Dept. 3

8:30 a.m.

August 4, 2026

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On April 2, 2025, plaintiffs Tania Godoy, Rosa Ramos, Jose Rodriguez, Alejandro Ayala, Isabel Ramirez, Yonatan Armando Rodriguez and Alejandro Tablas Castillo (collectively, "Plaintiffs") filed this habitability action against defendants Srinivas Odde ("Odde"), Siri Albers LLC ("Siri Albers") and Michelle Gonzalez ("Gonzalez"), individually and as Trustee of the Jose Elias Yauri Revocable Trust. Plaintiffs are tenants or former tenants of an apartment complex located at 11461 Albers Street, North Hollywood, California ("Property"). The Property was originally owned by Jose Elias Yauri, who passed away on February 1, 2024. Mr. Yauri's step-daughter, Gonzalez, attempted to manage the building after Mr. Yauri's death, but listed and sold the building in February 2025 to Odde who, in turn, assigned the purchase to Siri Albers.

On April 21, 2026, Gonzalez filed a motion for leave to file a cross-complaint for indemnity, contribution, and declaratory relief against Odde and Siri Albers. Gonzalez argues that she made all disclosures pertaining to the building, afforded Odde the opportunity to tour and inspect the units, and hired an expert to provide a risk assessment and report. (Motion, p. 3.) Gonzalez argues that a cross-complaint is necessary against Odde and Siri Albers because she is informed and believes that several tenants have entered into a settlement agreement with Odde and Siri Albers, even though many of the issues alleged in the Complaint are the result of Odde and Siri Albers's actions.

On June 9, 2026, the Court issued a tentative ruling denying the motion on grounds that Gonzalez failed to show that granting leave to file a cross-complaint was in the interest of justice. (See Code Civ. Proc., § 428.50, subd. (c).) At Gonzalez's request, the Court continued the hearing date and on June 30, 2026, Gonzalez filed an addendum to her motion. In this addendum, Gonzalez argues that a permissive cross-complaint against co-defendants Odde and Siri Albers should be allowed because there was an agreement between all the other defendants that there should be a united defense. Gonzalez claims she was unaware of the existence of the Settlement Agreement until recently in mid-March 2026 and did not discover its terms until May 4, 2026, even though the parties settled in June 2025.

The Court notes that no notice of settlement or request for dismissal was filed and that Gonzalez filed this motion shortly after discovering the existence of the settlement agreement. Accordingly, in the interest of justice, Gonzalez's motion for leave to

file a cross-complaint against Odde and Siri Albers is GRANTED and Gonzalez is ordered to file her proposed cross-complaint within 5 days of the date of this order.

Dated this 4th day of August 2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.